

An Act

ENROLLED SENATE
BILL NO. 2182

By: Howard of the Senate

and

Moore of the House

An Act relating to civil remedies; creating the Uniform Civil Remedies for Unauthorized Disclosure of Intimate Images Act; defining terms; authorizing cause of action for the intentional disclosure or threatened disclosure of an intimate image without the depicted individual's consent; limiting use of prior consent; providing for a reasonable expectation of privacy under certain circumstances; defining terms; establishing the burden of proof for the disclosing party to not be found liable under this act; excluding from liability defendants who are parents, legal guardians, or individuals with legal custody of a child unless plaintiff meets certain burden of proof; prohibiting a finding of public concern or public interest solely based on the depicted individual being a public figure; excluding certain data providers from being liable unless the provider had actual knowledge the specific content constitutes an intimate image disclosed without consent and failed to remove or disable access to the content; authorizing the exclusion or redaction of identifying characteristics of the plaintiff in court proceedings; providing for recovery of damages by prevailing plaintiff; authorizing the court to award a prevailing plaintiff reasonable attorney fees and costs and other additional relief including injunctive relief; providing a statute of limitations of four years for actions brought under this act; applying tolling statutes; tolling actions for depicted individuals who are minors on the date of disclosure or threatened disclosure; construing provisions; providing for codification; and providing an effective date.

SUBJECT: Civil remedies

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1121 of Title 12, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Uniform Civil Remedies for Unauthorized Disclosure of Intimate Images Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1122 of Title 12, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Consent" means affirmative, conscious, and voluntary authorization by an individual with legal capacity to give authorization;

2. "Depicted individual" means an individual whose body is shown in whole or in part in an intimate image;

3. "Disclose" or "disclosure" means transfer, publication, or distribution to another person;

4. "Identifiable" means recognizable by a person other than the depicted individual:

a. from an intimate image itself, or

b. from an intimate image and identifying characteristic displayed in connection with the intimate image;

5. "Identifying characteristic" means information that may be used to identify a depicted individual;

6. "Individual" means a human being;

7. "Intimate image" means a photograph, film, video recording, or other similar medium that shows:

- a. the uncovered genitals, pubic area, anus, or female post-pubescent nipple of a depicted individual, or
- b. a depicted individual engaging in or being subjected to sexual conduct;

8. "Person" means an individual, estate, business or nonprofit entity, public corporation, government or governmental subdivision, agency, or instrumentality, or other legal entity; and

9. "Sexual conduct" includes:

- a. masturbation,
- b. genital, anal, or oral sexual intercourse,
- c. sexual penetration of, or with, an object,
- d. bestiality, or
- e. the transfer of semen onto a depicted individual.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1123 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Harm" includes physical harm, economic harm, and emotional distress whether or not accompanied by physical or economic harm; and

2. "Private" means:

- a. created or obtained under circumstances in which a depicted individual had a reasonable expectation of privacy, or

- b. made accessible through theft, bribery, extortion, fraud, false pretenses, voyeurism, or exceeding authorized access to an account, message, file, device, resource, or property.

B. Except as otherwise provided in Section 4 of this act, a depicted individual who is identifiable and who suffers harm from a person's intentional disclosure or threatened disclosure of an intimate image that was private without the depicted individual's consent shall have a cause of action against the person if the person knew that the content was of the type prohibited.

C. Consent to creation of the image or previous consensual disclosure of the image by a depicted individual shall not establish by itself that the individual consented to the disclosure of the intimate image that is the subject of an action under this act or that the individual lacked a reasonable expectation of privacy.

D. A depicted individual who does not consent to the sexual conduct or uncovering of the part of the body depicted in an intimate image of the individual shall retain a reasonable expectation of privacy even if the image was created when the individual was in a public place.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1124 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Child" means an unemancipated individual who is less than eighteen (18) years of age; and

2. "Parent" means an individual recognized as a parent under the laws of this state.

B. A person shall not be liable under this act if the person proves that disclosure of, or a threat to disclose, an intimate image was:

1. Made in good faith:

- a. to law enforcement,
 - b. in a legal proceeding, or
 - c. during medical education or treatment;
2. Made in good faith in the reporting or investigation of:
 - a. unlawful conduct, or
 - b. unsolicited and unwelcome conduct;
3. Related to a matter of public concern or public interest; or
4. Reasonably intended to assist the depicted individual.

C. Subject to subsection D of this section, a defendant who is a parent, legal guardian, or individual with legal custody of a child shall not be liable under this act for a disclosure or threatened disclosure of an intimate image of the child.

D. If a defendant asserts an exception to liability under subsection C of this section, the exception shall not apply if the plaintiff proves the disclosure was:

1. Prohibited by law; or
2. Made for the purpose of sexual arousal, sexual gratification, humiliation, degradation, or monetary or commercial gain.

E. Disclosure of, or a threat to disclose, an intimate image shall not be a matter of public concern or public interest solely because the depicted individual is a public figure.

F. A provider of cloud computing, data storage, web hosting, or other infrastructure services shall not be liable under this act solely by reason of providing such services to a person who discloses or threatens to disclose an intimate image, provided that the provider:

1. Does not have actual knowledge that the specific content constitutes an intimate image disclosed without consent under this act; or

2. Upon obtaining actual knowledge of such content, acts expeditiously to remove or disable access to the content.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1125 of Title 12, unless there is created a duplication in numbering, reads as follows:

In a cause of action filed pursuant to this act:

1. The court may exclude or redact from all pleadings and documents filed in the action other identifying characteristics of the plaintiff;

2. A plaintiff to whom paragraph 1 of this section applies shall file with the court and serve on the defendant a confidential information form that includes the excluded or redacted plaintiff's name and other identifying characteristics; and

3. The court may make further orders as necessary to protect the identity and privacy of a plaintiff.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1126 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. In a cause of action filed pursuant to this act, a prevailing plaintiff may recover:

1. The greater of:

a. economic and noneconomic damages proximately caused by the defendant's disclosure or threatened disclosure, including damages for emotional distress whether or not accompanied by other damages, or

b. statutory damages not to exceed Ten Thousand Dollars (\$10,000.00) against each defendant found liable under this act for all disclosures and threatened

disclosures by the defendant of which the plaintiff knew or reasonably should have known when filing the action or which became known during the pendency of the action. In determining the amount of statutory damages under this subparagraph, consideration shall be given to the age of the parties at the time of the disclosure or threatened disclosure, the number of disclosures or threatened disclosures made by the defendant, the breadth of distribution of the image by the defendant, and other exacerbating or mitigating factors;

2. An amount equal to any monetary gain made by the defendant from disclosure of the intimate image; and

3. Punitive damages as allowed under law of this state other than this act.

B. In a cause of action filed pursuant to this act, the court may award a prevailing plaintiff:

1. Reasonable attorney fees and costs; and

2. Additional relief, including injunctive relief.

C. This act shall not affect any other right or remedy available under the laws of this state.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1127 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. An action authorized by subsection B of Section 3 of this act for:

1. An unauthorized disclosure may not be brought later than four (4) years from the date the disclosure was discovered or should have been discovered with the exercise of reasonable diligence; and

2. A threat to disclose may not be brought later than four (4) years from the date of the threat to disclose was made.

B. Except as otherwise provided in subsection C of this section, this section shall be subject to the tolling statutes of this state.

C. In an action under subsection B of Section 3 of this act by a depicted individual who was a minor on the date of the disclosure or threat to disclose, the time specified in subsection A of this section shall not begin to run until the depicted individual attains the age of majority.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1128 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. This act shall be construed to be consistent with the Communications Decency Act of 1996, 47 U.S.C., Section 230.

B. This act may not be construed to alter the laws of this state on sovereign immunity.

SECTION 9. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1129 of Title 12, unless there is created a duplication in numbering, reads as follows:

In applying and construing this uniform act, consideration shall be given to the need to promote uniformity of the law with respect to its subject matter among states that enact it.

SECTION 10. This act shall become effective November 1, 2026.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____